

CASE SUMMARY

State (BSES YPL) v. Mohd. Riyaz (FIR No. 65/2020)

SC No. 769/2022 | FIR No. 65/2020, PS Welcome | Court of the Addl. Sessions Judge-05 (Electricity), East, Karkardooma Courts, Delhi

COURT	Court of the Additional Sessions Judge-05 (Electricity), East District, Karkardooma Courts, Delhi
JUDGE	Sh. Ashish Rastogi, Addl. Sessions Judge-05 (Electricity)
DATE OF JUDGMENT	4 May 2026 (date of inspection / offence: 11 September 2019)
PARTIES	State (BSES Yamuna Power Ltd.) v. Mohd. Riyaz, R/o E-49/F-352, Janta Mazdoor Colony, Welcome, Delhi-110053
STATUTES INVOKED	Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Section 24, IPC; Sections 65B, 106 & 4, Indian Evidence Act, 1872; Sections 251, 313 & 41A, Cr.P.C.; Regulations 60–63, DERC (Supply Code) Regulations, 2007
RESULT	Convicted under Section 135, Electricity Act, 2003. Civil liability settled during trial but the settlement amount was not deposited (financial constraints pleaded). Matter posted for hearing on quantum of sentence.

CHARGE BEFORE THE COURT

Whether the accused Mohd. Riyaz dishonestly abstracted electricity by hooking a two-core cable directly onto BSES Pole No. YVR-Z-646 to feed his first- and second-floor premises, which had no meter of their own, so as to attract the offence of theft of electricity under Section 135(1)(a) of the Electricity Act, 2003; and whether, once the prosecution proved the unauthorised means of abstraction, he discharged the statutory onus cast by the presumption in the third proviso to Section 135(1).

FACTS

On 11 September 2019 at about 11.45 a.m., during a mass raid, an enforcement team of BSES Yamuna Power Ltd. headed by Sh. Tara Chandra (the then Assistant Manager) inspected the accused's premises at H. No. E-49/F-352, 1st and 2nd Floor, Janta Mazdoor Colony, Welcome, Delhi. No electricity meter was installed for the first and second floors — the only meter (No. 35002943) was at the ground floor and served that floor alone — and the accused was found drawing supply directly through a two-core black cable connected from BSES Pole No. YVR-Z-646. The accused was present at the spot; the connected load was 2.660 KW, used for domestic purposes. Sh. Sumit Kumar videographed the proceedings; an Inspection Report, Load Report and Seizure Memo were prepared at the spot. The company assessed a theft demand of Rs. 47,582/- and raised a theft bill, which went unpaid; its Authorised Officer thereupon filed the complaint on which FIR No. 65/2020 was registered.

Notice under Section 251 Cr.P.C. was given on 5 April 2024; the accused pleaded not guilty and claimed trial. The prosecution examined four witnesses: PW-1 Anuj Kumar Varshney, Diploma Trainee Engineer and inspection team member (proved the videography CD Ex.PW1/A, inspection report, load report, seizure memo and theft bill); PW-2 SI Dharamvir Singh (IO; proved the FIR, site plan, Section 41A notice, interrogation report, disclosure statement, the accused's Aadhaar card and an electricity bill standing in the name of Firoza Begum); PW-3 Tara Chandra (team leader, corroborating PW-1); and PW-4 Sumit Kumar (videographer, who proved the video and a certificate under Section 65B of the Evidence Act, Ex.PW4/A). In court, the seized case property — a black two-core cable of 2×10 sq. mm, about half a metre long — was produced and identified by PW-1. Under Section 313 Cr.P.C. the accused denied everything and pleaded false implication; he led no defence evidence. The Ld. Amicus Curiae appearing for him submitted that the civil liability had been settled during trial but the settlement amount could not be deposited due to financial constraints.

REASONING OF THE COURT

HEADNOTE

Direct hooking onto the licensee's pole to feed unmetered floors is theft under Section 135(1)(a); once the unauthorised tap is proved, the third proviso's compulsory presumption of dishonest abstraction stands unless the accused shows a lawful, metered source. Testimony elicited by the defence itself — that the premises were inspected in a mass raid and the load report prepared on seeing the connected load — admits the factum of inspection, and incriminating suggestions in cross-examination bind the accused (*Balu Sudam Khalde*).

Section 135(1)(a) required a dishonest abstraction through an unauthorised connection. The Court set out the ingredients — a dishonest tapping of, or connection with, a licensee's lines so as to abstract, consume or use electricity, punishable with imprisonment up to three years, or fine, or both — importing the Section 24 IPC definition of “dishonestly.” The allegation of hooking a cable onto a BSES pole brought the case squarely within clause (a), and the third proviso's presumption of dishonest use arose on proof of the artificial means.

The inspection team's evidence was consistent, and the defence's own questions admitted the inspection. PW-1, PW-3 and PW-4 — team members and videographer — corroborated each other on the absence of any meter for the inspected floors, the two-core black cable running from Pole No. YVR-Z-646, the accused's presence, the 2.660 KW domestic load and the seizure; none of it was rebutted in cross-examination. In answer to defence questions, PW-1 and PW-3 testified that the premises were inspected in a mass raid and that the load report was prepared after seeing the connected load — answers which, on *Balu Sudam Khalde v. State of Maharashtra*, 2023 INSC 314, themselves establish the factum of inspection, since incriminating suggestions put by defence counsel bind the accused. The videography (proved with a Section 65B certificate, Ex.PW4/A) was neither denied as to content nor authenticity beyond a bare suggestion of fabrication, and the seized cable was identified in court.

The absence of a public witness did not weaken the prosecution. Nothing showed animosity by the BSES officials; on *Punjab State Electricity Board v. Ashwani Kumar*, 2010 (7) SCC 569, the official inspection report carries a presumption of regularity, and on *Sushil Sharma v. BSES Rajdhani Power Ltd.* (Delhi HC, CrI. A. 1060/2010), non-examination of an independent witness is no infirmity. No procedural lapse under DERC Regulations 60–63 was suggested in cross-examination.

The presumption was compulsory, and the accused led nothing to rebut it. Following *Neeraj Dutt v. State*, SLP(Crl.) 6497/2020 (“shall presume” is a compulsory presumption) and *Hiten P. Dalal v. Bratindranath Banerjee*, 2001 (6) SCC 16 (rebuttal on the prudent-man standard), the Court noted that the accused led no defence evidence, admitted in effect that no meter existed for his floors, never explained what ran the appliances found on inspection,

and claimed no Genset. Applying *Mukesh Rastogi v. North Delhi Power Ltd.*, 2007 (99) DRJ 108, with Section 106 of the Evidence Act, the obvious rebuttal — paid electricity bills — was never produced; the only bill on record stood in the name of Firoza Begum, not of the accused for these premises. There was not an iota of evidence that the premises in the video were not his.

Settling the theft bill — even without depositing the amount — corroborated guilt. The accused settled the civil liability on the Rs. 47,582/- theft bill during trial, pleading financial constraint for non-deposit. Had the inspection been fabricated and the bill baseless, he would have protested and proceeded against the company rather than settling; the conduct fortified the prosecution case.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1)(a) — Theft of Electricity

Hooking a cable directly onto the licensee’s pole to feed premises that have no meter of their own is the paradigm clause (a) offence — a dishonest tap on the licensee’s lines. “Dishonestly” takes its Section 24 IPC meaning; the unmetered floors, the pole-to-premises cable and the absence of any lawful-source explanation together satisfied it.

Third Proviso to Section 135(1) — Presumption of Dishonest Use

A compulsory, reverse-onus presumption: on proof of an artificial or unauthorised means of abstraction, dishonest use is presumed “until the contrary is proved.” Read with *Neeraj Dutt* (“shall presume” leaves the court no option) and *Hiten P. Dalal* (prudent-man rebuttal standard), the accused had to show lawful, metered use — paid bills being the natural proof under the Section 106 onus (*Mukesh Rastogi*) — and did not.

DERC (SUPPLY CODE) REGULATIONS, 2007 — REGULATIONS 60 TO 63

The Court reproduced Regulations 60–63 — the inspection power with photo-ID safeguards (Reg. 60), the contemporaneous report with seizure, sealing and video documentation (Reg. 61), the prosecution procedure with the 24-hour police complaint and the missing-seal caution (Reg. 62), and the assessment at twice tariff for up to twelve months with credit for paid units (Reg. 63). Unchallenged compliance confirmed the inspection’s regularity; the Rs. 47,582/- assessment measured the theft.

HELD

The prosecution proved beyond reasonable doubt that no electricity meter was available at the accused’s premises at the time of inspection and that Mohd. Riyaz was found indulging in direct theft of electricity through an illegal wire — an offence punishable under Section 135 of the Electricity Act, 2003. Having led no evidence, he failed to rebut the statutory presumption. Mohd. Riyaz is accordingly **convicted under Section 135 of the Electricity Act, 2003**, and is to be heard on the quantum of sentence.

SIGNIFICANCE

Decided the same day as the companion prosecution against the accused and his wife (SC 415/2022, FIR 671/2019 — stopped-meter theft at their other Welcome-colony address), this judgment shows the framework applied to classic pole-hooking. Five propositions stand out:

- **Unmetered occupation plus a pole tap is the paradigm Section 135(1)(a) case.** Where whole floors run with no meter and a cable traces to the licensee's pole, the offence is made out on the inspection evidence itself.
- **Mass-raid testimony elicited by the defence proved the inspection.** Answers the defence itself drew out — that the premises were inspected in a mass raid and the load report prepared on observation — bound the accused (*Balu Sudam Khalde*).
- **A 65B certificate, where filed, forecloses the usual videography challenge.** With Ex.PW4/A on record, the bare suggestion of fabrication had nothing to bite on — contrast the companion cases where admissibility rested on the waived-objection rule in *Sonu @ Amar*.
- **A bill in someone else's name is no rebuttal.** The only electricity bill on record stood in the wife's name; under the Section 106 onus (*Mukesh Rastogi*) the accused had to show paid bills for lawful supply to *these* premises, and could not.
- **Settlement corroborates guilt even if never paid.** Settling the theft bill while pleading inability to deposit was read as conduct inconsistent with innocence.

CITATIONS

Neither side argued from case law; every citation below is drawn from the Court's own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Balu Sudam Khalde v. State of Maharashtra</i> 2023 INSC 314	Incriminating suggestions put by defence counsel in cross-examination bind the accused and can themselves establish facts such as the factum of, and presence at, the inspection.	Relied on
<i>Punjab State Electricity Board v. Ashwani Kumar</i> 2010 (7) SCC 569	An inspection report prepared by Board officers in discharge of official duty carries a presumption of regularity; the onus lies on the consumer to rebut it by cogent evidence.	Relied on
<i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i> Delhi HC, CrI. A. 1060/2010 (22.12.2010)	Non-examination of an independent/public witness is no infirmity where the inspecting officials are trustworthy and bear no enmity towards the accused.	Relied on
<i>Neeraj Dutt v. State</i> SLP(CrI.) 6497/2020	"Shall presume" denotes a compulsory legal presumption which the Court is bound to draw until the fact is disproved.	Relied on
<i>Hiten P. Dalal v. Bratindranath Banerjee</i> 2001 (6) SCC 16	A statutory presumption need not be conclusively disproved; the accused must adduce evidence making the defence reasonably probable to a prudent man.	Relied on
<i>Mukesh Rastogi v. North Delhi Power Ltd.</i> 2007 (99) DRJ 108	The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.